

TENTATIVE RULING

Case: **Clark v. Davis Joint Unified School District**
 Case No. CV2025-2838

Hearing Date: **April 7, 2026** **Department Fourteen** **9:00 a.m.**

On the Court's own motion, defendant Davis Joint Unified School District's demurrer to plaintiff's complaint and defendant's motion to strike plaintiff's complaint are **CONTINUED** to **May 19, 2026**, at 9:00 a.m. in Department Fourteen.

TENTATIVE RULING

Case: Estrada v. Garcia
Case No. CV2025-2260

Hearing Date: April 7, 2026 **Department Fourteen** **9:00 a.m.**

Defendants Daniel Navarrete Garcia and Rosa Maria Hernandez De Anda's demurrer to first amended complaint is **OVERRULED**. (Code Civ. Proc., § 430.10.) Defendants did not timely file their demurrer. (Code Civ. Proc., §§ 430.40, subd. (a), 471.5, subd. (a); see also *Carlton v. Dr. Pepper Snapple Group, Inc.* (2014) 228 Cal.App.4th 1200, 1209-1210; De Marco decl., ¶ 4, Exhibit A; Schaps decl., ¶¶ 4-5, Exhibit A.) Defendants fail to establish that plaintiffs improperly served the first amended complaint. (Reply, pp. 2-3; *Billings v. Palmer* (1905) 2 Cal.App.432, 433 [noting that "it be the custom among lawyers to deliver the copy prior to the filing, and this may be taken as sufficient where the complaint is afterward filed, yet until then there is no service"].)

As the Court is overruling the demurrer, defendants have 10 days from the hearing date, by no later than **April 17, 2026**, to answer the first amended complaint. (Cal. Rules of Court, rule 3.1320(j).)

If no hearing is requested, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.